amended, and the regulations thereunder."

(Sec. 215, 58 Stat. 690; 42 U. S. C. 216)

[SEAL] GEORGE E. ARMSTRONG,
Surgeon General of the Army.
H. L. PUGH,
Surgeon General of the Navy.
LEONARD A. SCHEELE,
Surgeon General of the Public Health Service.

Approved: July 27, 1954.

OVETA CULP HOBBY,
Secretary of Health, Education, and Welfare.

[F. R. Doc. 54-5850; Filed, July 30, 1954; 8:51 a. m.]

TITLE 17—COMMODITY AND SECURITIES EXCHANGES

Chapter II—Securities and Exchange Commission

PART 240—GENERAL RULES AND REGULATIONS UNDER THE SECURITIES EXCHANGE ACT OF 1934

REGISTRATION AND EXEMPTION OF EXCHANGES, SUPPLEMENTAL MATERIAL

The Securities and Exchange Commission has announced that it has rescinded paragraphs (c) and (d) of its § 240.6a-3 (Rule X-6a-3) under the Securities Exchange Act of 1934 to delete from the rule the requirement that a securities exchange file periodic reports to keep current the schedule of securities traded on the exchange. The rescissions will conform the requirements under this rule to the requirements under other related rules, particularly the rules applicable to the registration of securities to be listed on an exchange, which were recently amended to provide for class registration (see Securities Exchange Act Release No. 4990). The information required to be furnished to the Commission under the rules which have been rescinded will still be available from material filed under other applicable requirements.

Statutory basis. Paragraphs (c) and (d) of § 240.6a-3 are hereby rescinded and paragraph (e) of said rule is hereby renumbered paragraph (c) pursuant to the provisions of the Securities Exchange Act of 1934, particularly sections 17 (a) and 23 (a) thereof, the Commission deeming such action necessary and appropriate in the public interest and for the protection of investors and necessary to carry out its functions under the act. The Commission finds that such rescissions help to conform the requirements under § 240.6a-3 to the requirements under other related rules and have the effect of simplifying regulatory requirements and relieving restriction, and that, therefore, notice and public procedure pursuant to section 4 (a) and (b) of the Administrative Procedure Act are unnecessary and the rescissions may be declared effective before the expiration of thirty days after the publication thereof.

(Sec. 23, 48 Stat. 901, as amended; 15 U. S. C. 78w. Interprets or applies sec. 17, 48 Stat. 897; 15 U. S. C. 78q)

Effective July 26, 1954.

By the Commission.

[SEAL] ORVAL L. DUBOIS,
Secretary.

JULY 26, 1954.

[F. R. Doc. 54-5857; Filed, July 30, 1954; 8:53 a. m.]

TITLE 22—FOREIGN RELATIONS

Chapter III—Foreign Claims Settlement Commission of the United States

PART 303—RULES OF PROCEDURE

MISCELLANEOUS AMENDMENTS

Sections 303.25, 303.26, and 303.27, Part 303, Chapter III, Title 22, Code of Federal Regulations are amended as follows:

1. Section 303.25 *Effect of decision* is amended to read as follows:

§ 303.25 *Effect of decision.* The decision of the Commission shall without further proceedings become the final decision of the agency.

2. Section 303.26 is revoked.
3. Section 303.27 is revoked.

This amendment shall become effective as of the date of filing with the FEDERAL REGISTER.

(Sec. 3, 64 Stat. 13; 22 U. S. C. 1622)

WHITNEY GILLILLAND,
Acting Chairman, Foreign Claims Settlement Commission of the United States.

[F. R. Doc. 54-5863; Filed, July 30, 1954; 8:54 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix C—Public Land Orders

[Public Land Order 986]

OREGON

AMENDING EXECUTIVE ORDERS NO. 8794 OF JUNE 14, 1941 AND NO. 8999 OF DECEMBER 26, 1941

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Orders No. 8794 of June 14, 1941, and No. 8999 of December 26, 1941, withdrawing public lands for the use of the War Department are hereby amended by deleting therefrom the following paragraph, which was added to such orders by Executive Order No. 9526 of February 28, 1945:

The jurisdiction granted by this order shall cease at the expiration of the six months period following the termination of the unlimited national emergency declared by Proclamation No. 2487 of May 27, 1941 (55 Stat. 1647). Thereupon, jurisdiction over the lands hereby reserved shall be vested in the Department of the Interior, and any other department or agency of the Federal Government according to their respective interests then of record. The lands, however, shall remain withdrawn from appropriation as herein provided until otherwise ordered.

Executive Order No. 8999 of December 26, 1941, is further amended by deleting therefrom the following paragraph:

After the present national emergency has been officially terminated, this order shall be without effect upon notice to the War Department by the Secretary of the Interior that the above-described land is needed for grazing or other uses by the Department of the Interior.

The said Executive Orders No. 8794 and 8999 are further amended by substituting the words "Department of the Army" for the words "War Department" occurring in the titles and in the orders thereof.

ORME LEWIS,
Assistant Secretary of the Interior.

JULY 27, 1954.

[F. R. Doc. 54-5824; Filed, July 30, 1954; 8:45 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF THE INTERIOR

Bureau of Mines

[30 CFR Part 15]

[Bureau of Mines Schedule 1-G]

EXPLOSIVES

NOTICE OF PROPOSED RULE MAKING

Notice is hereby given that the Director of the Bureau of Mines, with the approval of the Secretary of the Interior, proposes to amend the regulations in this part governing the testing of explosives and related articles as indicated below. Interested persons may submit written data, views or arguments in regard to the proposed regulations to the Director, Bureau of Mines, Department of the Interior, Washington 25, D. C. All communications shall be in triplicate. All relevant material received not later than 30 days after the publication of this notice in the FEDERAL REGISTER will be considered in connection with the issuance of the proposed amendments to this part.

Part 15 of Subchapter C, Chapter I of Title 30, Code of Federal Regulations, would be amended to read as follows:

Sec.
15.1 Purpose.
15.2 Definitions.
15.3 Application for test.
15.4 Fees.
15.5 Shipment of explosives.
15.6 Conditions under which tests for permissibility will be made.
15.7 Place of investigation.
15.8 Consultation.
15.9 Observers at formal investigations.
15.10 Chemical and physical tests.

Sec.
15.11 Requirements for approval of permissible explosives.
15.12 Granting of approval.
15.13 Rescission of approval.
15.14 Release of test data.
15.15 List of permissible explosives.
15.16 Conditions under which a permissible explosive must be used.
15.17 Field testing.
15.18 Tolerances as applied to field samples.
15.19 Field sample failures.
15.20 Variance from prescribed tolerances.
15.21 Sheathed permissible explosives.
15.22 Tests on nonpermissible explosives and other materials.

AUTHORITY: §§ 15.1 to 15.22 issued under sec. 5, 36 Stat. 370, as amended; 30 U. S. C. 7. Interpret or apply sec. 3, 36 Stat. 370, as amended; 30 U. S. C. 5.

§ 15.1 *Purpose.* The regulations in this part specify certain minimum safety standards and the requirements for approval by the Bureau of Mines, of explosives as permissible for use in coal mines. The use of explosives for dislodging coal in underground mines involves at least two possible hazards, namely:

(a) Ignition of methane-air and/or coal dust-air mixtures when the explosive charge is detonated.

(b) Emission of toxic gases such as carbon monoxide, oxides of nitrogen, and hydrogen sulfide when the explosive charge is detonated.

§ 15.2 *Definitions.* As used in this part, the following terms are defined:

(a) "Explosive" is any chemical compound or mixture containing oxidizing and combustible materials which can be transformed almost instantaneously into other products which are mostly highly heated gases exerting tremendous pressures.

(b) "Approval" is a written official notification by the Bureau of Mines that, upon investigation, the explosive has met satisfactorily the requirements of this part for use in coal mines. Reports of tests other than the complete series required for the determination of permissibility are not approvals and should not be construed as such.

(c) "Basic sample" means the original sample that was approved by the Bureau of Mines for use in coal mines.

(d) "Equivalent" is an ingredient that will not materially alter the properties of the explosive and that will produce the same result as the original substance. In matters affecting its approval, the Bureau will deem itself sole judge of the question of equivalence.

(e) "Ingredients" are substances reported as found by the Bureau of Mines in the original sample of explosive submitted as the basic sample.

(f) "Lot of permissible explosives" means all explosives bearing identical case markings.

(g) "Permissible explosive" is an explosive that conforms with the basic sample which has received the approval of the Bureau.

§ 15.3 *Application for tests.* Before the Bureau of Mines will make any tests on an explosive, the applicant must file a written request (no application form is provided by the Bureau) with a statement as to the nature of the explosive to be tested and any other pertinent information regarding the materials to be submitted. This request should be addressed to the Chief, Explosives and Physical Sciences Division, Region VIII, U. S. Bureau of Mines, Central Experiment Station, 4800 Forbes Street, Pittsburgh 13, Pennsylvania. The Bureau's engineers will review the application and decide whether or not the tests will be undertaken. If the application is approved, an application number will be assigned and instructions given regarding the fees required and method of shipment of materials. Upon receipt of this information, the applicant must transmit to the address given in this section, a check, bank draft, or money order made payable to the Treasurer of the United States, to cover all fees for the tests.

§ 15.4 *Fees.* (a) The fee for complete tests leading to approval of an explosive will be $850. If the applicant withdraws an explosive, or if the explosive fails to pass any of the tests prescribed in this part, the Bureau will charge for the tests actually performed, with a minimum charge of $100, on the basis set out in paragraph (b) of this section. The balance of the fees will be returned to the applicant.

(b) The fees covering individual tests will be as follows:

(1) Pendulum friction test to determine sensitiveness to frictional impact, $15.

(2) Physical examination (for each size cartridge), $10.

(3) Chemical analysis of explosive, $80.

(4) Explosion by influence (halved-cartridge method), $15.

(5) Ballistic mortar test, $35.

(6) Gallery test 1, per shot, $14.

(7) Gallery test 4, per shot, $30.

(8) Rate of determination tests, $40.

(9) Gaseous products of explosion (this test does not include the determination of the oxides of nitrogen), $60.

(10) For other tests, the costs as determined by the Bureau's engineers on the basis of estimate of the costs to the Bureau in making the test.

§ 15.5 *Shipment of explosives.* Samples of explosives to be tested shall be shipped only after the Bureau has furnished instructions regarding the quantities of materials required, mode of shipment of the materials, and destination. Shipments shall be properly labeled and comply with the Interstate Commerce Commission regulations. The minimum quantities and sizes required for complete official tests for permissibility are as follows:

(a) Seventy-five pounds of each explosive in 1¼- by 8-inch cartridges, but if the cartridge count per 50-pound case is less than 150 cartridges, then 225 cartridges is the minimum quantity required.

(b) Fifty cartridges of each explosive in the smallest diameter in which it is desired the explosive shall become permissible, except when this smallest diameter is 1¼ inches. Diameters of less than one inch will not be approved.

(c) Ten cartridges of each explosive in any diameter other than those covered by paragraphs (a) and (b) of this section in which it is desired the explosive shall become permissible.

(d) Should the manufacturer later desire to market other diameters, the Bureau will, upon application by the manufacturer, establish the basic data for grams of wrapper and apparent specific gravity of these diameters. A fee (§ 15.4 (b) (2)) will be charged for each diameter. If the diameter is smaller than the smallest permissible diameter approved on the basic sample, a propagation test (rate of detonation) will also be required and a fee charged for such test (§ 15.4 (b) (8)). No test will be made on any diameter less than that on which failure to propagate has occurred, nor will any retest be made on a given diameter which has failed to propagate in any one trial.

§ 15.6 *Conditions under which tests for permissibility will be made.* (a) The explosive will be stored in one of the Bureau's magazines for at least 30 days before the gallery tests are made.

(b) Explosives containing incompatibles (that is, substances that will react when mixed) or those containing either chlorates, chlorites, or perchlorates, and those found to be chemically unstable, or showing leakage of explosive oil, or in such condition that exudation of the explosive oil would occur in handling or transporting, will not be tested.

(c) Tests for a manufacturer are limited to samples of explosives which are his own product.

(d) The results of chemical analyses of materials submitted for tests will be furnished only to the manufacturer, and then only when covered by a fee. Users will not be furnished with chemical analysis, except in case of a dispute involving the manufacturer and user where the Bureau consents to act as an umpire at the request of both parties.

(e) No report on the results of tests made by the Bureau of Mines, or any part thereof, may be published without the consent of the Bureau of Mines.

§ 15.7 *Place of investigation.* Tests on explosives will be made at the Bureau's Explosives Testing Station at Bruceton, Pennsylvania, in order of receipt of the explosives, provided an application is on file.

§ 15.8 *Consultation.* Any potential applicant (or accredited representative thereof) may visit the Bureau of Mines' Central Experiment Station, Pittsburgh, Pennsylvania, to discuss, without charge, explosives proposed to be submitted for investigation by the Bureau. Should preliminary tests appear advisable before submitting the explosive for formal investigation, the Bureau may conduct such tests for the applicant with fees as prescribed in § 15.4.

§ 15.9 *Observers at formal investigations.* No one shall be present during any tests conducted at the Bureau except the necessary Government personnel, representatives of the applicant, and such other persons as may be mutually agreed upon by the applicant and the Bureau. The applicant will be notified as to the date of tests in sufficient time to witness them. Witnesses may be present solely as observers; the conduct of